

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
JULY 15, 2026
8:30 a.m.

2. DANA R. BARTH, JR. V. SUSAN MARIE BARTH

25FL1188

This matter is before the court for hearing of the Request for Order (RFO) regarding potential sale of the marital residence filed by the Petitioner on June 29, 2026.¹ The RFO also included a request for order shortening time. The court ordered Petitioner to serve the RFO on or before July 01, 2026; and ordered Respondent to file her Responsive Declaration on or before July 06, 2026. Proof of service filed July 08, 2026, shows the RFO was electronically served upon Respondent on June 29, 2026.

Respondent filed no Responsive Declaration.

The court grants the Petitioner's RFO. Petitioner is directed to prepare and submit a Findings and Orders after Hearing (FOAH) reflecting this ruling for the court's signature.

TENTATIVE RULING #2: THE COURT GRANTS THE PETITIONER'S RFO. PETITIONER IS DIRECTED TO PREPARE AND SUBMIT A FINDINGS AND ORDERS AFTER HEARING (FOAH) REFLECTING THIS RULING FOR THE COURT'S SIGNATURE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.

¹ On June 26, 2026, Petitioner filed an ex parte application for temporary emergency orders granting him exclusive control of the marital residence to permit the sale of said property. The court denied the request for temporary emergency orders but set the matter for hearing on July 08, 2026, to be heard concurrently with the instant RFO. The July 08 hearing was subsequently continued to July 15, 2026.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
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3. DUSTIN NUNNERY V. SUZANA NUNNERY

25FL0486

This matter is before the court for hearing of the Request for Order (RFO) filed by the Respondent on May 29, 2026, to award child support and spousal support. Respondent concurrently filed an Income and Expense Declaration (I&E). Proof of service filed June 03, 2026, shows the RFO and supporting documents were electronically served upon Petitioner that same day.

On June 30, 2026, Petitioner filed a Responsive Declaration and I&E, both of which were served upon Respondent that same day.

On July 02, 2026, Respondent filed a supplemental declaration, a copy of which was electronically served upon Petitioner that same day, according to the proof of service, also filed July 02, 2026.

The court calculates Petitioner's gross monthly income as \$13,986. Petitioner's paystub issued June 16, 2026, shows a year-to-date total of \$72,309 through June 05, 2026. $\$72,309 / 5.17 \text{ months} = \$13,986 \text{ per month}$. Petitioner claims the following monthly credits: (1) \$603 for retirement payments, (2) \$325 for medical expenses, and (3) \$317 for job-related expenses. The court accepts the retirement and medical credits but disallows the job-related expenses on the grounds that Petitioner failed to submit any supporting documentation reflecting such expenses. The court notes that it appears from Petitioner's paystubs that he may be entitled to additional credits (i.e., union dues), but the court has not included them in the instant calculation because Petitioner does not list them on his I&E.

Respondent's I&E does not indicate how many hours she is currently working. She states she returned to work on June 20, 2026, and her hours vary. Absent additional information, the court will estimate that Respondent works 20 hours per week. Similar to Petitioner, it appears Respondent may be entitled to certain credits, but she has not listed any on her I&E.

With respect to custody timeshare, both parties agree in their respective I&Es that Respondent's timeshare is 70 percent and Petitioner's timeshare is 30 percent. The court will use the figures reflected in the parties' I&Es, even though Respondent claims in her supplemental declaration that Petitioner's timeshare is only 10 percent.

As shown in the attached XSpouse calculation printout, Petitioner is ordered to pay Child Support to the Respondent in the amount of \$837, beginning June 01, 2026, and the first of each month thereafter until further order of the court. The court orders the Petitioner to pay \$50 Child Support for the month of May 2026 (six percent of the monthly support amounts). Arrears created by the retroactive start date of this order shall be paid at the rate of \$63 per month beginning August 01, 2026 and the 1st day of each month thereafter until paid in full.

The Court denies the Respondent's request for Temporary Spousal Support, without prejudice. (The XSpouse calculation was run with Spousal Support and resulted in no order.)